

1 15A NCAC 12H .0308 is proposed for re-adoption as follows:

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3 **15A NCAC 12H .0308 MUTUAL TERMINATION**

4 ~~(a) Articles of dedication may terminate~~ shall terminate only under the following circumstances:

5 (1) in accordance with the terms of the Articles of dedication itself; or

6 (2) in accordance with the nature and duration of the underlying legal interest in the property being
7 placed under the Articles of dedication; or

8 (3) upon mutual written consent executed by and between the owner, its successors or assigns, and the
9 State.

10 ~~(b) Articles of dedication may be terminated upon mutual written consent executed by and between the owner, its~~
11 ~~successors or assigns, and the State.~~

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13 *History Note: Authority G.S. ~~113A-164.4113A-164.6(e); 143B-135.256; 143B-135.260(c);~~*

14 *Eff. January 1, ~~1986~~; 1986.*

15 *Amended Eff. December 31, 2016.*

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